

COMPLAINT NO. 1061-17-0295

IN THE MATTER OF

ARLENE BESS

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**BEFORE THE TEXAS BEHAVIORAL
HEALTH EXECUTIVE COUNCIL**

**THE TEXAS STATE BOARD
OF EXAMINERS OF
PROFESSIONAL COUNSELORS**

AGREED ORDER

Pursuant to its authority under §507.305 of the Texas Occupations Code; 22 Texas Administrative Code §884.12(e); and §2001.056 of the Government Code, the Executive Director for the Texas Behavioral Health Executive Council ("Council") hereby approves, ratifies, and enters this Agreed Order with the following Findings of Fact, Conclusions of Law, and Order of the Council, which have been approved and accepted by **ARLENE BESS** (Respondent) and which constitutes a full settlement and compromise of all complaints currently pending against Respondent before the Council in the above-referenced and numbered matter.

FINDINGS OF FACT

1. Respondent is licensed as a Professional Counselor (LPC) (#72856) in the State of Texas and is, therefore, subject to the jurisdiction of the Council under the Act.
2. On or about June 24, 2017, through June 30, 2017, the Respondent failed to maintain complete and accurate client records and failed to establish a clear and certain fee arrangement regarding two sessions.

CONCLUSIONS OF LAW

1. Respondent voluntarily received a license from the Council and, therefore, is bound by the provisions of Chapters 503 and 507 of the Texas Occupations Code and the Rules of the Council, 22 Texas Administrative Code Parts 30, 35, and 41.
2. Violation of the Council's Rules is unprofessional conduct and constitutes grounds for the imposition of sanctions under §§ 503.401, 507.301, and 507.351 of the Texas Occupations Code.
3. Based on the above Findings of Fact, the Council finds that Respondent violated Council Rules 22 Tex. Admin. Code §§ 681.41(e)(1), §681.41(f), §681.41(t)(1, 4).

4. This Agreed Order is a Settlement Agreement under the Texas Rules of Evidence and is not admissible for the purposes of civil litigation. By entering into this Agreed Order, Respondent does not admit the foregoing Findings of Fact or Conclusions of Law, but agrees to resolve this matter to avoid the expense and uncertainty of further proceedings.

ORDER

IT IS HEREBY ORDERED, ADJUDGED, AND DECREED THAT:

1. Respondent's license is hereby REPRIMANDED.
2. Continuing Education. Within twelve (12) months from the date this order is entered, Respondent shall complete and submit proof of completion of six (6) hours of professional development relating to recordkeeping and six (6) hours of professional development related to billing. Respondent will pay all costs of the coursework, and this professional development is in addition to the professional development hours required for license renewal.

WARNING

RESPONDENT'S FAILURE TO COMPLY WITH ONE OR MORE TERMS OF THIS ORDER MAY CONSTITUTE A VIOLATION OF 22 TEXAS ADMINISTRATIVE CODE §884.55 REQUIRING FURTHER DISCIPLINARY ACTION.

WAIVERS

On the underlying investigative file, Respondent has waived his or her right to an informal settlement conference, a formal hearing before an Administrative Law Judge at the State Office of Administrative Hearings (SOAH), and judicial review pursuant to Texas Government Code Chapter 2001, in exchange for the conditions set out in this Agreed Order.

THE RESPONDENT, BY SIGNING THIS ORDER, AGREES TO ITS TERMS, ACKNOWLEDGES UNDERSTANDING OF THE FORMAL NOTICES, FINDINGS OF FACT, AND CONCLUSIONS OF LAW SET FORTH HEREIN AND COVENANTS TO SATISFACTORILY COMPLY WITH THE MANDATES OF THIS ORDER IN A TIMELY MANNER. RESPONDENT FURTHER ACKNOWLEDGES AND AGREES THAT HE OR SHE HAS AGREED TO THIS ORDER UPON THE ADVICE AND CONSENT OF COUNSEL, OR THAT HE OR SHE HAS HAD THE OPPORTUNITY TO HAVE THIS ORDER REVIEWED BY COUNSEL OF HIS OR HER CHOICE.

FOR THE RESPONDENT:

Marc M Meyer

Marc Meyer
Texas Bar No. 24070266
Attorney for Respondent
33300 Egypt Lane
Ste. C600
Magnolia, TX 77354

FOR THE STAFF OF THE COUNCIL:

Mary Kay Sicola

Mary Kay Sicola
Texas Bar No. 18339800
Staff Attorney
Texas Behavioral Health Executive Council
333 Guadalupe, Ste. 3-900
Austin, Texas 78701

DATE SIGNED: 7/27/2021

DATE SIGNED: 7/29/21

AGREED:

Arlene Bess
Arlene Bess (#72856)

DATE SIGNED:

7/15/21

APPROVED, RATIFIED, AND ENTERED THIS 30th DAY OF July, 2021.

Darrel Spinks

Darrel Spinks
Executive Director
Texas Behavioral Health Executive Council